Legal Research Memo: Clearly Established Law for Qualified Immunity Opposition

Topic: Procedural Due Process and Blanket Policies in Sex Offender Treatment Programs (SOTP)

Jurisdiction: Ninth Circuit / Supreme Court

Date: August 9, 2026

I. Core Proposition

A blanket policy that categorically prevents or indefinitely delays completion of a condition of supervised release (e.g., mandatory treatment) — without case-by-case assessment of the individual’ s progress, risk, or treatment needs — violates procedural due process. This right is clearly established in the Ninth Circuit through a combination of bedrock due process principles and specific applications to liberty restrictions and blanket policies.

II. Key Authority: Ninth Circuit and Supreme Court

1. The Requirement for Individualized Assessment (Anti-Blanket Policy Doctrine)

- **United States v. Sanchez-Gomez**, 859 F.3d 649 (9th Cir. 2017) (en banc), *vacated on other grounds*, 138 S. Ct. 1532 (2018).
  - **Holding:** The Ninth Circuit en banc held that a **blanket policy** of shackling all defendants in a courtroom without an **individualized assessment** of the need for restraints violates the Due Process Clause.
  - **QI Relevance:** Although vacated for mootness, the court's reasoning that "due process requires an individualized determination" before imposing a significant liberty restriction (even within a courtroom) is a core principle.
  - **Analogy:** If a blanket policy for courtroom safety requires individualized assessment, a blanket policy for treatment completion (affecting years of liberty) a fortiori requires it.
- **Edmo v. Corizon, Inc.**, 935 F.3d 757 (9th Cir. 2019).
  - **Holding:** A blanket policy that denies a specific medical treatment (Gender Confirmation Surgery) to all inmates without an individualized assessment of medical necessity violates the Eighth Amendment.

- **QI Relevance:** Establishes that in the context of state-provided treatment, "blanket policies" that ignore individual clinical needs are unconstitutional.
- **Analogy:** A blanket policy that no one "completes" treatment regardless of progress is the mirror image of a blanket policy that no one "receives" treatment. Both substitute corporate policy for individualized clinical judgment.

- **Serrano v. Francis**, 345 F.3d 1071 (9th Cir. 2003).
  - **Holding:** Prison officials violated **clearly established law** by applying a blanket policy that denied a certain class of inmates (those in administrative segregation) the right to call witnesses.
  - **QI Relevance:** Confirms that the application of a "blanket policy" to override a procedural right is a violation of clearly established law.

2. Due Process in Sex Offender Treatment and Parole

- **Neal v. Shimoda**, 131 F.3d 818 (9th Cir. 1997).
  - **Holding:** Labeling an inmate as a sex offender and requiring participation in a treatment program as a condition of parole eligibility triggers a liberty interest. Procedural due process requires an adversarial hearing.
  - **QI Relevance:** This is the foundational case establishing that SOTP conditions are not mere "internal prison matters" but liberty-affecting conditions that trigger full due process protections.
  - **Analogy:** If due process is required to *start* the condition, it must be required to *continue* or *end* it, especially when the pathway to completion is illusory.
- **Chavez v. Robinson**, 12 F.4th 978 (9th Cir. 2021).
  - **Holding:** Discusses the due process implications of a "discharge" from an SOTP that results in re-incarceration.
  - **QI Relevance:** The court reversed a dismissal on QI grounds, indicating that the procedural rights surrounding SOTP participation and its impact on liberty are a fertile ground for "clearly established" claims.
- **Foucha v. Louisiana**, 504 U.S. 71 (1992).
  - **Holding:** Continued confinement of an insanity acquittee requires periodic, **individualized justification** that the person remains both mentally ill and dangerous.
  - **Analogy:** Mandatory treatment as a condition of parole is a form of "conditional liberty." Under *Foucha*, the state cannot maintain such restrictions based on a categorical status (e.g., "once a sex offender, always in treatment") without periodic individualized assessment.

3. Private Contractors as State Actors

- **West v. Atkins**, 487 U.S. 42 (1988).
  - **Holding:** A private physician under contract with the state to provide medical services to prisoners acts "under color of state law" for § 1983 purposes.
  - **Relevance:** The CEO of a private company contracted by CDCR to provide mandatory parole treatment is a state actor.
- **Tsao v. Desert Palace, Inc.**, 698 F.3d 1128 (9th Cir. 2012).
  - **Holding:** Private entities can be held liable under § 1983 for policies or customs that violate constitutional rights (applying *Monell* to private corporations).
  - **Relevance:** The "blanket policy" itself is the basis for corporate/individual-capacity liability.

III. Robust Consensus of Persuasive Authority

- **Jessie v. United States**, 79 M.J. 437 (C.A.A.F. 2020) (citing *Lacy v. United States*): Condemning "automatic blanket policies" in sex offender treatment that prevent completion without individualized review.
- **Chubb v. Sullivan**, 2014 WL 2807986 (D. Kan. 2014): Addressing the due process implications of a blanket policy that prevents sex offender treatment completion.

IV. Analysis of "Illusory Pathways"

The Ninth Circuit has recognized in other contexts that procedures which are "merely nominal and illusory" do not satisfy due process. (See *Johnson v. City of Grants Pass*, 50 F.4th 787 (9th Cir. 2022)). A graduation pathway that clinicians are "prohibited from providing" to clients and that has a 0% completion rate is the definition of an illusory procedure.

V. Qualified Immunity Specifics

- **Specificity:** The right is not just "due process" but the "right to an individualized assessment before the state continues a significant restriction on liberty via a mandatory treatment condition."
- **Beyond Debate:** The combination of *Neal* (liberty interest in SOTP), *Sanchez-Gomez* (blanket policies are unconstitutional), and *Foucha* (periodic individualized justification required) places the question beyond debate.